



File No.: EXP202301660

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: MR. A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on December 22, 2022. The complaint is directed against the NAVARRE REGIONAL POLICE with NIF S3100003G (hereinafter, the POLICE). The reasons for the complaint are as follows: The complainant states that, during a detention at a roadside checkpoint, the POLICE agents photographed his vehicle. He refers to it as a vehicle with unusual characteristics, one of the few or the only one that exists, both in the community and population mentioned in the tweet that the POLICE posted on the social network Twitter (...).

Likewise, the complainant declares that in the published photo, his dog can be seen peeking out of the rear window and the image of the complainant is reflected in the right rearview mirror, along with the crimes and infractions committed by the person who was stopped prior to the complainant (positive for three types of drugs, seizure of four types of drugs, seizure of two knives, and the amounts of the fines).

This publication causes the news to spread through digital media, associating his vehicle with the commission of the described crimes, resulting in the loss of his job, as well as embarrassment when leaving home, as he claims in the complaint itself.

Furthermore, the complainant alleges that he filed a complaint with the POLICE in July 2022, receiving the resolution of another complaint with the personal data and actions of the parties involved in it. He reiterated the complaint in August, receiving no response.

Along with the complaint, he provides the taken photograph, the POLICE's publication on Twitter, as well as the news publication in the Navarra newspaper and exchanged emails with the POLICE, including one dated ***DATE.1, which responds to the complaint ***COMPLAINT.1, a complaint allegedly filed by a third party.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the POLICE for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on February 13, 2023, as recorded in the acknowledgment of receipt in the file. No response has been received to this forwarding letter.

THIRD: On March 22, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: On July 28, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the complained party for the alleged infringement of Article 5.1.f) of the GDPR and Article 32 of the GDPR, classified under Article 44.2.a) of the LOPD (LES).

FIFTH: The aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and the complained party submitted a written statement of allegations.

On February 13, 2023, the AEPD forwarded a complaint and requested information regarding the facts, addressing "to the attention of the data controller or their Data Protection Officer." From the Internal Regime Brigade, the request was forwarded to the specialized unit of the Navarre Police, the Brigade of Technological Development and Quality.

According to the Chief Inspector of the aforementioned Unit, after receiving the information request from the AEPD, an investigation was initiated to ascertain the facts that motivated such a complaint. All graphic documents associated with this complaint, which are recorded in the Police Information

System, were reviewed, finding no graphic documentation. Communication was made with the head of the Communication and Citizen Participation Group, and it was indicated that the photograph had been sent by the operational police to the Communication Group and was not among the graphic documents associated with the act attributed to the complainant, driving under the influence of psychotropic substances. Therefore, it was a non-evidentiary image of the alleged offense, rather an image of the operation that took place over several hours at the location.

The head of the Technological Development and Quality unit deduces that the publication of the photograph incorporated into the Twitter network was an interaction between the operational teams that acted in the field and the personnel of the Communication and Citizen Participation Group, without reaching to be an element of proof of the infringement.

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3/18

In light of the facts, the data controller of the Foral Police and the Communication and Citizen Participation Group were informed that any graphic document regarding police actions that is intended for publicity must be modified in such a way that it is impossible to identify companions, clothing, tattoos, animals, objects, vehicles, etc., or any other type of element that could be associated with the identity of a person.

To assist in the control of this matter, specific training on Data Protection legislation and personal data has been requested for the members of the Communication and Participation Group for the year 2023, which is expected to be delivered before the end of 2023.

Additionally, a repository has been created on a network unit of the Foral Police, to which only the Communication Group and the Data Security and Protection Officer of the Foral Police have access permission, where all images published on social media will be stored in order to exercise strict and real control over all content, text, and images that may be publicized.

Furthermore, a procedure has been developed whereby the Data Protection Security Officer will verify the published images together with the head of the Communication Group, in order to establish a unified criterion within the Foral Police regarding the handling and publication of documents, especially graphic ones.

Finally, a project called “Multimedia Container” has been initiated, which is equipped with a repository and software associated with the Police Information System that will be implemented throughout 2024, whereby it is established that every graphic document, regardless of the format, must be associated with an event recorded in the Police Information System. Once entered into the system, there will be absolute control over its traceability, with movements (introduction, copy, deletion) being recorded, as well as the user who performs them. Under no circumstances will the existence of graphic documents in the Foral Police network be allowed that are not associated or accessible to general users, and a system will be implemented that does not allow their download, except in the aforementioned container.

Regarding the formal aspect of receiving the complaint sent by the AEPD on 02/13/2023, the Chief Inspector of the Technological Development and Quality Brigade adds that it was received in February 2023, and from that moment all the actions described were carried out; however, due to unknown reasons, the response communicating the actions taken was not sent to the Spanish Agency for Data Protection within the deadline.

For its part, regarding the substance of the matter that originally motivated the information request from the AEPD and subsequently the initiation of the sanctioning procedure, the Head of the Communication and Citizen Participation Group of the Foral Police informs that on ***DATE.2 a tweet was published on the corporate Twitter account ***ACCOUNT.1, where information was provided about a police control carried out in the locality of ***LOCALITY.1 (Navarra), in which three phrases were included that implied as many alleged infractions.

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administrative, as well as a photograph of a vehicle. By mistake, the aforementioned tweet included the photograph of a vehicle whose driver was also reported in the indicated control, but which did not correspond to the written information and facts reflected in the tweet.

The Chief Sub-Inspector of the Group continues stating that, contrary to what the complainant claims regarding the recognizable nature of the vehicle and therefore associable to his person, the model of the vehicle is a common model and that the license plate was “pixelated” in order to protect its owner who, on the other hand, could or could not be the reported driver. Regarding the identification of the location of the police control, the locality of ***LOCALIDAD.1 (Navarra), such mention was made as a confirmation of place, but it is not associated with the vehicles reviewed, nor with the reported individuals being natives, neighbors, or residents of the mentioned locality. For these purposes, the designation of the location of the police action follows the general criteria established by the Press Office of the Government of Navarra, which indicates that a locality is identifiable when it exceeds 2,000 inhabitants, while in the case of localities with lower demographic density, broader geographical indicators are cited, such as Valleys, Cendeas, or even Merindad, and always provided that the occurrence of allegedly infringing situations is accredited, either in the field of citizen security or in the field of road safety. Regarding the possible recognition of the dog appearing in the photograph, the manager of the Communication Group assures that such detail went completely unnoticed by the person who edited the image, cropping it and pixelating the vehicle's license plate.

The report from the person in charge of managing the social networks of the Policía Foral concludes by recounting a series of circumstances of interest for the adjudication of the attributed facts.

- The personnel of the Participation and Citizen Communication Group of the Policía Foral have generic and basic training on the protection of personal data provided to all members of the police force, and are currently awaiting specific training that will be carried out, as already stated, before the end of the year 2023.

- For years, the Group has opted to avoid any possible identification of the protagonists in photographs, either by pixelating their physical characteristics or by avoiding providing information that can be associated with the location, criteria that have been applied along with other measures such as avoiding references using initials for identification, for example.

- It is common in this type of publication for users to express their complaints or disagreements through the social network itself, including requests for the deletion of documents, which are usually addressed immediately by the Communication Group if it is considered that it may infringe rights or violate the privacy of individuals. In the present case, the complainant chose to use a complaint channel completely unrelated to the social media management group, which hindered access to his request.

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5/18

- Following the receipt of the initiation of the sanctioning procedure now underway, on the morning of August 11, 2023, the tweet was removed, a matter that can be verified by the AEPD on the official Twitter account of the Policía Foral ***CUENTA.1

SIXTH: On September 8, 2023, a resolution proposal was made in which the allegations against the initiation agreement were dismissed and the declaration of infringement was proposed:

- Article 5.1.f) of the GDPR, infringement classified under Article 83.5 of the GDPR.

- Article 32 of the GDPR, infringement classified under Article 83.4 of the GDPR.

SEVENTH: The proposal for resolution was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and the responding party submitted a written statement of allegations.

In view of all that has been acted upon, the Spanish Agency for Data Protection considers the following

facts to be proven in the present procedure,

PROVEN FACTS

FIRST: It is recorded in the file that the POLICE on Twitter has published the photo of the vehicle of the complaining party.

SECOND: According to the file, the published photo shows the image of the complaining party reflected in the right rearview mirror, along with the crimes and infractions committed by the person who was stopped prior to the complaining party, according to his statement, as well as his dog peeking out of the rear window.

THIRD: The publication of the cited photo makes the complaining party perfectly identifiable.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures...

6/18

processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In the present case, in accordance with the provisions of Article 4.1 of the GDPR, there is evidence of the processing of personal data, given that the POLICE carries out, among other processes, the collection, storage, use, and dissemination of personal data of the individuals involved, such as: name and surname and email address... etc.

The POLICE carries out this activity in its capacity as the data controller, as it is the one who determines the purposes and means of such activity, by virtue of the aforementioned Article 4.7 of the GDPR.

In this case, a photo of the claimant's vehicle, a vehicle with unusual characteristics, has been published on the POLICE's Twitter, with very few existing in the community and population (**LOCALITY.1, approx. X.XXX inhabitants), as stated by the claimant in their complaint.

Furthermore, in the published photo, the claimant's dog can be seen peeking out of the rear window and the image of the claimant is reflected in the right rearview mirror, along with the crimes and offenses committed by the person who was stopped prior to the claimant, according to their statement.

III

Allegations to the initiation agreement

In response to the allegations presented by the entity being complained against, the following should be noted, in the order presented:

On February 13, 2023, the AEPD forwarded a complaint and requested information regarding the facts, addressing "the attention of the data controller or their Data Protection Officer." From the Internal Regime Brigade, the request was forwarded to the specialized unit of the Foral Police, the Brigade of Technological Development and Quality.

As reported by the Chief Inspector of the aforementioned Unit, following the receipt of the information request from the AEPD, an investigation was initiated to ascertain the facts that motivated such a complaint.

Indeed, the Spanish Agency for Data Protection, in accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), which has provided a mechanism prior to the admission of complaints filed with it,

forwarded the complaint to the Data Protection Officer designated by the data controllers or processors, for the purposes provided in Article 37 of the aforementioned regulation, or to them when they had not designated one, so that the analysis of said complaint could proceed and a response be given within one month.

However, after that period has elapsed and up to the date of today, no response has been received. All graphic documents associated with this complaint, which is recorded in the Police Information System, were reviewed, finding no graphic documentation. Communication was made with the head of the Communication and Citizen Participation Group, and it was indicated that the photograph had been sent by the operational police to the Communication Group and was not found among the graphic documents associated with the act attributed to the claimant, the driving under the influence of psychotropic substances. Therefore, it was a non-evidentiary image of the alleged offense, rather an image of the action that took place over several hours at the location.

The head of the Technological Development and Quality unit deduces that the publication of the photograph incorporated into the Twitter network was an interaction between the operational teams that acted in the field and the personnel of the Communication and Citizen Participation Group, without reaching to be an element of proof of the infringement.

It is evident that the published photograph corresponds to an image of police action, and that even being "an image of action," it shows that corporate means were not used, nor sufficient mechanisms to avoid identifying the person in the published photograph.

In light of the facts, the head of the Foral Police treatment was informed, as well as the Communication and Citizen Participation Group, that any graphic document regarding police actions that is desired to be publicized must be modified in such a way that it is impossible to identify companions, clothing, tattoos, animals, objects, vehicles, etc., or any other type of element that may be associated with the identity of a person.

To assist in controlling the matter, specific training on Data Protection legislation and personal data for the members of the Communication and Participation Group has been requested for the year 2023, which is expected to be provided before the end of 2023.

Additionally, a repository has been created in a network unit of the Foral Police to which only the Communication Group and the Security and Data Protection Officer of the Foral Police have access permission, where all images published on social networks will be stored in order to exercise strict and real control over all content, text, and image, susceptible to being publicized.

Moreover, a procedure has been developed whereby the Data Protection Security Officer will verify the published images together with the head of the Communication Group, in order to acquire in Police C/ Jorge Juan, 6

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8/18

To establish a unified criterion regarding the treatment and publication of documents, especially graphic ones.

Finally, a project called "Multimedia Container" has been initiated, which is equipped with a repository and software associated with the Police Information System that will be implemented throughout 2024. This project establishes that every graphic document, regardless of its format, must be associated with a fact recorded in the Police Information System. Once entered into the system, there will be absolute control over its traceability, with records of movements (introduction, copy, deletion), as well as the user who performs them. Under no circumstances will the existence of graphic documents in the Foral Police network be allowed if they are not associated or accessible to general users, and a system will be implemented that does not allow their download, except in the aforementioned container.

In response to the above, it should be mentioned that all security measures adopted to prevent incidents like the one that occurred fall within their obligations in compliance with data protection regulations; since, as the data controller, they are obliged to apply appropriate technical and organizational measures to ensure a level of security adequate to the risk presented by data processing.

However, this agency positively values the security measures adopted subsequently; although this does not negate the commission of the aforementioned infringements.

Regarding the formal aspect of receiving the complaint sent by the AEPD on 02/13/2023, the Chief Inspector of the Technological Development and Quality Brigade adds that it was received in February 2023, and from that moment all the actions described were carried out. However, due to unknown reasons, the response communicating the actions taken was not sent to the Spanish Agency for Data Protection within the deadline.

Indeed, as of today, no response has been received, either within or outside the deadline, regarding the transfer of the complaint and the request for information to this Spanish Agency for Data Protection.

For its part, regarding the substance of the matter that originally motivated the request for information from the AEPD and subsequently the initiation of the sanctioning procedure, the Chief of the Communication and Citizen Participation Group of the Foral Police informs that on ***DATE.2 a tweet was published on the corporate Twitter account ***ACCOUNT.1, where information was provided about a police control carried out in the locality of ***LOCALITY.1 (Navarra), which included three phrases implying as many alleged administrative infringements, in addition to a photograph of a vehicle. By mistake, the aforementioned tweet included the photograph of a vehicle whose driver was also reported during the indicated control, but which did not correspond to the written information and facts reflected in the tweet.

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9/18

The allegation of an error in the written information and the facts reflected in the tweet published; in no case does it undermine the facts that occurred.

The Chief Sub-Inspector of the Group continues to state that, contrary to what the complainant claims regarding the recognizable nature of the vehicle and therefore its association with his person, the model of the vehicle is a common model and that the license plate was "pixelated" in order to protect its owner who, on the other hand, could or could not be the reported driver. Regarding the identification of the location of the police control, the locality of ***LOCALIDAD.1 (Navarra), such citation was made as a confirmation of place, but it is not associated with the vehicles checked, nor with the reported individuals being natives, neighbors, or residents of the mentioned locality. For these purposes, the designation of the location of the police action follows the general criteria established by the Press Office of the Government of Navarra, which indicates that a locality is identifiable when it exceeds 2,000 inhabitants, while in the case of localities with lower population density, broader geographical indicators are cited, such as Valleys, Cendeas, or even Merindad, and always provided that the occurrence of allegedly infringing situations is accredited either in the field of citizen security or in the field of road safety. Regarding the possible recognition of the dog appearing in the photograph, the manager of the Communication Group assures that such detail went completely unnoticed by the person who edited the image, cropping it and pixelating the vehicle's license plate.

In relation to the above, we must remember that Article 4 of the GDPR defines personal data as: "... any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person...". Therefore, to speak of personal data, the concurrence of a double element is required: on one hand, the existence of information or data and, on the other, that such data can be linked to a natural person.

The publication of the cited photo makes the claiming party perfectly identifiable, without the use of corporate means or sufficient mechanisms to avoid making the person identifiable.

It is evident that references to the locality (***LOCALIDAD.1, approx. X.XXX inhabitants), the characteristics of the car in that locality, as well as the image of the dog in the published photograph,

make the claiming party identifiable.

The report from the person in charge of managing the social networks of the Police Foral concludes by recounting a series of circumstances of interest for the adjudication of the attributed facts.

- The personnel of the Participation and Citizen Communication Group of the Police Foral have received generic and basic training on personal data protection provided to all officials of the police force, and are currently awaiting specific training that will be executed as already stated, before the end of 2023.
- For years, the Group has opted to avoid any possible identification of the protagonists in photographs, either by pixelating their physical characteristics or by avoiding providing information that could be associated with the location, criteria that have been applied along with other measures such as avoiding references through initials of identification, for example.
- It is common in this type of publication for users to raise their complaints or disagreements through the social network itself, including requests for the deletion of documents, which are usually addressed immediately by the Communication Group if it is considered that it may infringe rights or violate the privacy of individuals. In the present case, the complainant chose to use a complaint channel completely unrelated to the social media management group, which hindered access to his request.
- Following the receipt of the initiation of the sanctioning procedure now underway, on the morning of August 11, 2023, the tweet was removed, a matter that can be verified by the AEPD on the official Twitter account of the Police Foral ***CUENTA.1.

In this regard, this Spanish Agency for Data Protection is obliged to remind that any processing of data or information about natural persons that allows their identification implies compliance with the current regulations on data protection.

For all the above,

ALL allegations made are DISMISSED.

IV

Allegations to the proposed resolution

In response to the allegations presented by the entity being complained against, the following should be noted, in the order presented:

1.

The FORAL DECREE 20/2019, of March 6, approves the data protection and information security policy of the Administration of the Foral Community of Navarra. It is the foundational document through which the framework is defined that allows for the management of data protection and information security in the context of activities involving the processing of personal data and the information systems of the Administration of the Foral Community of Navarra and its public bodies.

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11/18

In this general framework, the different responsibilities and roles necessary to define, implement, and manage it are delineated, roles that are integrated into the existing organizational structure. Regarding the Foral Police Corps of Navarra:

- a) Responsible for the processing: the person who determines the purposes and means of the processing is the Counselor of the Department of Interior, Public Function, and Justice.
- e) Responsible for the service: the person who determines the functional and security requirements of the services provided based on the information is the Chief of the Foral Police.
- f) Responsible for information security: the person who makes decisions to meet security requirements is the Chief of the Technological Development Brigade of the Foral Police.

The Spanish Agency for Data Protection, in accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), as a preliminary mechanism for the admission of the claim filed by Mr. A.A.A., and for the purposes provided in Article 37 of the LOPDGDD, forwarded the claim to the Foral Police of Navarra

for analysis of said claim and to provide a response within one month.

Article 37.2 of the LOPDGDD establishes that “when the affected party submits a claim to the Spanish Agency for Data Protection or, where appropriate, to the autonomous data protection authorities, they may forward the claim to the data protection officer so that he/she responds within one month.

If after this period the data protection officer has not communicated to the competent data protection authority the response given to the claim, that authority will continue the procedure in accordance with the provisions of Title VIII of this organic law and its development regulations.”

Since the forwarding of this claim for analysis and response was notified not to the Data Protection Delegate in the Foral Community of Navarra, as indicated by the regulations, but to the Foral Police of Navarra, this circumstance may have been the origin, though not the justification, of the inadequate internal coordination within this Administration that resulted in the lack of response to the requested information.

In response to this allegation, it is mentioned that the transfer of the claim is made in accordance with the provisions of Article 65.4 of the LOPDGDD.

“4. Before resolving on the admission of the claim, the Spanish Agency for Data Protection may forward it to the data protection officer designated by the responsible or in charge of the processing, to the supervisory body established for the application of codes of conduct or to the body that assumes the functions of extrajudicial conflict resolution for the purposes provided in Articles 37 and 38.2 of this organic law...”

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12/18

While; in no case does the alleged matter undermine the commission of the cited infringements.

2. In the written allegations to the initiation agreement of the sanctioning procedure, it is explained that “to assist in controlling the matter, specific training on Data Protection legislation and personal data has been requested for the members of the Communication and Participation Group for the year 2023, which is expected to be delivered before the end of the year 2023.”

As this specific training is finalized and materialized, with the aim of recalling the main points of the regulations on protection, the current personnel of the Communication and Participation Group has enrolled in the training action “BASIC COURSE ON DATA PROTECTION FOR THE PUBLIC ADMINISTRATIONS OF NAVARRA.”

It is an online training course provided by the Navarre Institute of Public Administration from October 3 to October 24, 2023, lasting 10 hours, aimed at all personnel of the Public Administrations who handle personal data.

In response to this allegation, it should be noted that all security measures adopted to prevent incidents like the one that occurred fall within their obligations in compliance with data protection regulations; since, as the data controller, they are obliged to apply appropriate technical and organizational measures to ensure a level of security appropriate to the risk presented by the data processing.

These measures are not only measures of the IT systems but also organizational measures of the human factor.

However, this body positively values the security measures adopted subsequently; however, this does not undermine the commission of the cited infringements.

3. On the other hand, as already communicated during the hearing process, the Foral Police proceeded to remove the tweet, a matter that can be verified by the AEPD on the official Twitter account of the Foral Police ***ACCOUNT.1.

In addition, it has been communicated to the main digital media that this tweet has been removed from the official Twitter account of the Foral Police, due to the fact that the tweet included a photograph that, for reasons related to data protection, has been removed from the Police's social networks and should not be used.

In response to this allegation, it should be noted that given what occurred, the measures adopted,

which are alleged, are the minimum measures corresponding to the sanctioned party, as it is the data controller who fully knows their organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

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13/18

However, the removal of the tweet from the official Twitter account of the Foral Police does not exempt from responsibility for the commission of the cited infringement.

V

Article 5.1.f) of the GDPR

Article 5.1.f) “Principles relating to processing” of the GDPR establishes:

“1. Personal data shall be:

(...)

f) processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction or damage, by means of appropriate technical or organizational measures (‘integrity and confidentiality’).”

In this case, it is noted that the POLICE on Twitter has published the photo of the vehicle of the claimant.

The claimant has stated that it is a vehicle of unusual characteristics, one of the few or the only ones that exist, both in the community and population (***LOCALITY.1, approx. X.XXX inhabitants).

Furthermore, in the published photo, the image of the claimant is reflected in the right rearview mirror, along with the crimes and infringements committed by the person who was stopped prior to the claimant, according to their statement, as well as their dog peeking out of the rear window.

This publication is accompanied by the following text:

(...).

In this regard, we must recall the definition of personal data contained in Article 4 of the GDPR: “... ‘personal data’: any information relating to an identified or identifiable natural person (‘data subject’); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more factors specific to the physical, physiological, genetic, mental, economic, cultural or social identity of that natural person...”.

Not forgetting that, in Recital 26 of the same legal text, it is provided that the principles of data protection must apply to all information relating to an identified or identifiable natural person.

For all these reasons, in accordance with the available evidence, an infringement of Article 5.1 f) of the GDPR has occurred.

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14/18

VI

Classification of the infringement of Article 5.1.f) of the GDPR

The aforementioned infringement of Article 5.1.f) of the GDPR constitutes the commission of the infringement classified in Article 83.5 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" states:

"Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the preceding financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)"

In this regard, the LOPDGDD, in its Article 71 "Infringements" establishes that:

"Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

For the purposes of the statute of limitations, Article 72 "Infringements considered very serious" of the LOPDGDD indicates:

"1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a three-year statute of limitations: those that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679. (...)"

VII

Article 32 of the GDPR

Article 32 "Security of processing" of the GDPR establishes:

"1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the varying likelihood and severity of risks to the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

a) the pseudonymization and encryption of personal data;

b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;

c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident;

d) a process for regularly verifying, assessing, and evaluating the effectiveness of technical and organizational measures to ensure the security of processing.

2. In assessing the appropriateness of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a result of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

3. Adherence to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements set out in paragraph 1 of this Article.

4. The controller and the processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data only processes such data on instructions from the controller, unless required to do so by Union or Member State law."

In the present case, there is no evidence that the POLICE had reasonable security measures in place based on the estimated potential risks.

Through the procedure, it has been verified that corporate means were not used to detect possible illicit activities, and there were also insufficient mechanisms to ensure that the individual could not be identified, which suggests a lack of knowledge on the part of the personnel involved in the publication process, as well as a lack of appropriate technical and organizational measures to ensure a level of security adequate to the risk, which would have prevented that publication and provided greater privacy guarantees to individuals, thereby preventing the violation of confidentiality, integrity, and availability of processing systems and services.

For all these reasons, in accordance with the available evidence, an infringement of Article 32 of the GDPR has occurred.

VIII

Classification of the infringement of Article 32 of the GDPR

The aforementioned infringement of Article 32 of the GDPR constitutes the commission of the infringement classified in Article 83.4 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" states:

"Violations of the following provisions shall be subject to administrative fines of up to 10,000,000 EUR

or, in the case of an enterprise, an amount equivalent to a maximum of 2% of the total annual global turnover of the preceding financial year, opting for the higher amount:

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
16/18

5) the obligations of the controller and the processor pursuant to Articles 8, 11, 25 to 39, 42, and 43; (...)"

In this regard, the LOPDGDD, in its Article 71 "Infringements" establishes that "Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those contrary to this organic law, constitute infringements."

For the purposes of the limitation period, Article 73 "Infringements considered serious" of the LOPDGDD indicates:

"Based on what is established in Article 83.4 of Regulation (EU) 2016/679, the following infringements are considered serious and shall be subject to a limitation period of two years, which involve a substantial violation of the articles mentioned therein, particularly the following:

...

f) The failure to adopt those technical and organizational measures that are appropriate to ensure a level of security appropriate to the risk of processing, as required by Article 32.1 of Regulation (EU) 2016/679. (...)"

IX

Sanction for the infringement of Article 5.1 f) and Article 32 of the GDPR

Article 83 "General conditions for the imposition of administrative fines" of the GDPR paragraph 7 establishes:

"Without prejudice to the corrective powers of the supervisory authorities under Article 58, paragraph 2, each Member State may establish rules on whether and to what extent administrative fines may be imposed on authorities and public bodies established in that Member State."

Likewise, Article 77 "Regime applicable to certain categories of controllers or processors" of the LOPDGDD provides as follows:

1. The regime established in this article shall apply to the processing for which they are responsible or processors: ...

c) The General Administration of the State, the administrations of the autonomous communities, and the entities that comprise the Local Administration...

2. When the controllers or processors listed in paragraph 1 commit any of the infringements referred to in Articles 72 to 74 of this organic law, the competent data protection authority shall issue a resolution declaring the infringement and establishing, where appropriate, the measures that should be adopted to cease the conduct or to correct the effects of the infringement that has been committed, with the exception of that provided for in Article 58.2.i of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

17/18

The resolution shall be notified to the controller or processor, to the body to which it hierarchically depends, where applicable, and to the affected parties who had the status of interested parties, where applicable.

3. Without prejudice to what is established in the previous paragraph, the data protection authority shall also propose the initiation of disciplinary proceedings when there are sufficient indications for it. In this case, the procedure and the sanctions to be applied shall be those established in the legislation on disciplinary or sanctioning regime that is applicable.

Furthermore, when the infringements are attributable to authorities and executives, and the existence of technical reports or recommendations for processing that have not been duly addressed is proven, the resolution imposing the sanction shall include a reprimand naming the responsible officer and shall order the publication in the Official State Gazette or the corresponding autonomous community's official bulletin.

4. The resolutions relating to the measures and actions referred to in the previous paragraphs shall be communicated to the data protection authority.

5. The actions carried out and the resolutions issued under this article shall be communicated to the Ombudsman or, where applicable, to the analogous institutions of the autonomous communities. (...)” Consequently, it is appropriate to issue a resolution declaring the infringement committed by the POLICE.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE that the POLICÍA FORAL DE NAVARRA, with NIF S3100003G, has infringed the provisions of Article 5.1.f) of the GDPR and Article 32 of the GDPR, infringements classified in Articles 83.5 and 83.4 of the GDPR, respectively.

SECOND: TO NOTIFY this resolution to the POLICÍA FORAL DE NAVARRA.

THIRD: TO COMMUNICATE this resolution to the Ombudsman, in accordance with the provisions of Article 77.5 of the LOPDGDD.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution shall be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the

C/ Jorge Juan, 6

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28001 – Madrid

sedeagpd.gob.es

18/18

Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative route may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal.

If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through one of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. The interested party must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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